

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL APPELLATE JURISDICTION)**

Present:

Mr. Justice Md. Shohrwardi

Criminal Appeal No. 3850 of 2022.

Mahmud Alam

..... appellant

-Versus-

The State and another

..... Respondent

Mr. Md. Sarwar Ahmed, Advocate with
Mr. Mohammad Rezaul Kabir Khan,
Advocate

... ..for the appellant

Mr. Md. Monirul Islam, DAG with
M/s.Anjuman Ara Begum, AAG with
M/s. Kazi Shamsun Nahar, AAG with
Mr. Md. Shamim Khan, AAG

... For the respondent

Mr. Mohammad Sazzad Hossain, Advocate

..... For the respondent No.2

**Heard on: 07.05.202, 14.05.202, 15.05.2023 and
28.05.2023.**

Judgment on: 05.06.2023 and 08.06.2023

This appeal under Section 10 of the Criminal Law Amendment Act, 1958 is directed against the judgment and order of conviction and sentence dated 12.04.2022 passed by the Special Judge, Kushtia in Special Case No. 03 of 2016 arising out of Chuadanga Police Station Case No. 13 dated 12.08.2015 corresponding G.R. No. 319 of 2015 convicting the accused under section 161 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 and sentencing him under section 161 of the Penal Code, 1860 to suffer simple imprisonment

for 01(one) year and also convicting him under section 5(2) of the Prevention of Corruption Act, 1947 and sentencing him to suffer simple imprisonment for 02 (two) years and to pay a fine of Tk. 50,000 (fifty thousand) in default to suffer simple imprisonment for 03 (three) months which shall run concurrently.

The prosecution case, in short, is that, Md. Abdul Gaffar Deputy Director, Anti-Corruption Commission, Kushtia lodged FIR with Sadar Police Station, Chuadanga against the accused alleging, inter alia, that Mahmud Alam, Assistant Engineer, Directorate of Health Engineering, Chuadanga and Meherpur was discharging his duty at Chuadanga. P.W. 7 Md. Khairul Islam, Sub-contractor, under the Directorate of Health Engineering, Chuadanga applied on 11.08.2015 to the Deputy Director, ACC, Kustia stating that accused Mahmud Alam demanded Tk. 2,20,000 as a bribe when he applied to get back the security deposit of the performance guarantee. Md. Emarat Hossain, partner of P.W. 7 gave Tk. 100,000 on 15.07.2015 as a bribe but he did not give the memo number. The accused demanded further Tk. 1,20,000 and P.W. 7 Khairul Alam agreed to pay Tk. 50,000 on 12.08.2015. After that, the Anti-Corruption Commission, Chuadanga obtained permission from the Anti-Corruption Commission, Dhaka to conduct a trap case and accordingly, 3-member trap team was constituted headed by P.W. 1 Abdul Gaffar and P.W. 9 Md. Abdul Based Ali and P.W. 11 Md. Julfikar Ali were members of the trap team. On 12.08.2015, the members of the trap team assembled at the office of the Principal of Jhinuk Secondary High School, Kotpara, Chuadanga and prepared an inventory of 50 notes of Tk. 1000 and at about 1:30 pm handed over those notes to P.W.7 in the presence of P.W. 8 Rebeka Sultana, Headmistress of Jhinuk Secondary High School and P.W. 2 Hossain Ali. After that, P.W. 7 went to the office of the accused along with the members of the trap team and reached there at 3:20 p.m. The members of the trap team remained on guard outside the office of

the accused from about 3:25 p.m. to 3:35 p.m. P.W. 7 Md. Khairul Islam handed over 50 notes of Tk. 1000 to the accused as a bribe. Sensing the handing over of said 50 notes of Tk. 1000 to the accused, the members of the trap team immediately entered the room of the accused and recovered 48 notes of Tk.1000 from his possession. Thereafter, a seizure list was prepared and the witnesses signed the seizure list.

P.W. 10 Shahidul Islam Moral, the Deputy Assistant Director, Anti-Corruption Commission, Kustia took up the investigation of the case and during the investigation, the investigating officer recorded the statement of witnesses under section 161 of the Code of Criminal Procedure, 1898 and after completing the investigation, found prima facie truth of the allegation against the accused made in the FIR and submitted charge sheet against the accused on 21.01.2016 under section 161 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947. After that, the case record was transmitted to the Senior Special Judge, Kustia for trial and the case was registered as Special Case No. 3 of 2016.

During the trial, the charge was framed under section 161 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 and the accused pleaded not guilty to the charge and claimed to be tried following law.. The prosecution examined 11 witnesses to prove the charge against the accused. After examination of the prosecution witnesses, the accused was examined under section 342 of the Code of Criminal Procedure, 1898 and he declined to adduce any DW. After concluding the trial, the trial court by impugned judgment and order convicted the accused and sentenced him as stated above against which he preferred this appeal.

P.W. 1 Md. Abdul Gaffar is the informant. He stated that from 29.08.2012 to 30.11.2017 he was discharging his duty as Deputy Director, Anti-Corruption Commission, Kushtia. On 11.08.2015 Md. Khairul Islam filed an application stating that Ms M.M. Kamal Enterprise obtained work orders of 10 tenders under the Directorate of Health Engineering, Chuadanga and on behalf of the M/S M.M Kamal Enterprise said Md. Khairul Islam completed the construction works of total Tk. 43,15,850. While they applied to get back the performance security of 06 tenders, the accused demanded Tk. 2,20,000 as a bribe and as per his demand on 15.07.2015 at 3 pm Imarat Hossain paid Tk. 100,000 as a bribe. But he did not give any memo number and the office of the Executive Engineer, Jessore refused to accept the application for withdrawal of the performance security. Subsequently, on 07.08.2015 when the informant went to the accused, he again demanded Tk. 100,000 as a bribe, failing which, he will not issue any memo. After that, the office of the Anti-Corruption Commission, Kustia obtained approval from the Office of the Anti-Corruption Commission, Dhaka and made an entry in ER No. 15 of 2015 dated 12.08.2015. A committee was formed headed by him (P.W. 1) and Md. Shahidul, Md. Julfiker and Md. Based Ali both A.S.I of the Anti-Corruption Commission, Kustia were members of the team. After getting the written approval through fax, the informant along with the members of the trap team went to the office of the Headmistress of Jhinuk Secondary High School and in the presence of the witnesses made an inventory of 50 notes of Tk. 1000 supplied by Md. Khairul Islam at 1.30 pm. The informant signed the notes and the inventory. He proved the inventory as exhibit-1 and his signature as exhibit-1/1. He claimed that the witnesses and Khairul Islam also signed the inventory. Thereafter, said 50 notes of Tk.1000 were handed over to Md. Khairul Islam to bribe the accused. After that, Md. Khairul Islam went to the office of the Directorate of Health Engineering, Chuadanga and he along with other members of the trap team at

about 3.20 pm went to the office of the accused and the members of the trap team remained on guard outside the office of the accused. At about 3.20 pm to 3.30 pm, Khairul Islam handed over 50 notes of Tk.1000 to the accused and sensing the handing over the said notes to the accused, the members of the trap team and the witnesses entered the guest room of the accused and recovered 48 notes of Tk.1000 from his possession. At that time, the informant compared the recovered notes with the notes mentioned in the inventory and found that the notes mentioned in the inventory were recovered from the accused. The witnesses also identified the notes. Thereafter, at about 4.10 pm prepared the seizure list and took the signatures of the witnesses. He proved the seizure list as exhibit-2 and his signature as exhibit-2/1. Out of 50 notes of Tk. 1000, 48 notes of Tk. 1000 were seized. He proved the said notes as material exhibit-I. Thereafter, he lodged the FIR. He proved the FIR as exhibit-3 and his signature as exhibit-3/1. He proved the letter of approval as exhibit 4. He also proved the application filed by Md. Khairul Islam as exhibit 5. During cross-examination, he admitted that before the lodgment of the FIR, he had no knowledge about the 11 tenders and he could not say whether there was any contract between Khairul Islam and the Office of the Executive Engineer. He could not say whether Md. Khairul Islam and Emarat are the registered contractors of the Chuadanga and Meherpur. He also admitted that none of the 11 contractors made any allegation against the accused. No document was submitted as regards the involvement of Md. Khairul Islam with the said tenders. He affirmed that Md. Khairul Islam filed a complaint on 11.08.2015 but he did not make an entry in the ER Register. The seizure list witness Hossain Ali is the furniture supplier of the Anti-Corruption Commission and Rebeka Sultana, Headmistress of Jhinuk Secondary High School is a witness of the trap case. At the time of conducting the trap case, Assistant Inspector Shahidur Rahman, S.I. Julfikar and Based Ali were present and after handing over the cash Md. Khairul Islam left the

place of occurrence. He also admitted that the statement of Emarat was not recorded during the investigation of the case.

P.W. 2 Md. Hossein Ali stated that he signed the inventory prepared on 12.08.2015 at 1:30 p.m. and the seizure list prepared at 4.10 p.m. He proved his signatures as exhibit-1/2 and 2/2. On 12.01.2015, he went to the office of the Jhinuk Secondary High School for his work. The Deputy Director Abdul Guffar told him that he signed on 50 notes of Tk. 1000 which will be given to an officer of the Directorate of Health Engineering as a bribe. On that day at 01.30 pm, said Deputy Director called him and he went to the office of the Directorate of Health Engineering. At one point in time, the Deputy Director recovered the said notes from that person of the Directorate of Health Engineering. Thereafter, said notes were shown to him and others. In his presence, the Deputy Director counted the notes and found total 48 notes of Tk.1000. The seizure list was prepared in his presence and he signed the seizure list. He identified the accused from whom the Deputy Director recovered the notes. During cross-examination, he stated that he used to supply the woods to the office of the District Anti-Corruption Commission for which Deputy Director Abdul Gaffar was known to him and they have a good relationship. He affirmed that at about 1:30 p.m. the Deputy Director called him. About 15 persons assembled at the office of the Directorate of Health Engineering. In the office of the School, Gaffar, Khairul, Rebeka and many others were present. He went to the office at about 3:00 p.m. and after about 30/40 minutes, he came out from the office. The office of Health Engineering is situated 0.5 km away from his shop. He admitted that after the arrest of the accused, he signed the seizure list. He denied the suggestion that he did not go to the place of occurrence and he also did not sign the seizure list.

P.W. 3 Md. Abu Sayed is a witness of the seizure list. He stated that on 04.11.2015 he signed the seizure list. He proved the

seizure list as exhibit-3 and his signature as exhibit-3/1. He admitted that he is an outsourcing employee of Health Engineering, Chuadanga and Assistant Engineer Rafiqul Islam presented the seized documents to the officers of the Anti-Corruption Commission. He admitted that the seizure list was not prepared in his presence, but he signed the seizure list. During cross-examination, he denied the suggestion that he did not know anything about the contents of the seizure list.

P.W. 4 Md. Rafiqul Islam is the Accountant of the Directorate of Health Engineering. He stated that from June 2014 to 2017, he was discharging his duty as Accountant of the Directorate of Health Engineering, Jessore. While he was discharging his duty at about 12.30 pm, the Executive Engineer Abu Sayed presented the documents to the investigating officer Shahidul Islam Moral and at about 3 pm the investigating officer seized the documents and at the time of preparing 2 seizure lists, he was present there. He proved the seizure list dated 02.11.2015 as exhibit-6 and his signature as exhibit-6/1. He proved the seizure list dated 02.11.2015 prepared at 3:00 p.m. as exhibit-7 and his signature as exhibit-7/1. During cross-examination, he stated that 11 contractors obtained the work orders for 11 tenders and amongst them Maa Enterprise, MM Kamal Enterprise, Morium and Sons and Siam Construction also obtained the work orders.

P.W. 5 GM Aminur Rahman is the Accountant of the Directorate of Health Engineering. He stated that from August 2010 to February 2016 he was discharging his duty in the office of the Directorate of Health Engineering, Jessore. On 02.11.2015 at about 12.30 pm Executive Engineer Abu Sayed presented documents to the investigating officer Shahidul Moral and at about 3:00 pm, the investigation officer seized those documents and prepared 02 seizure lists. He proved the seizure list dated 02.11.2015 prepared at 12:30 p.m. as exhibit-6 and his signature as exhibit-6/2. He proved the

seizure list dated 02.11.2015 prepared at 3:00 p.m. as exhibit-7 and his signature as exhibit-7/2. During cross-examination, he stated that as per the instruction of the Executive Engineer, all the bills were prepared. Total 10/11 contractors obtained the work orders of total Tk. 43,15,850. Maa Enterprise, MM Kamal Enterprise, Khan Construction and Siam Construction also obtained the work orders for those tenders and the Executive Engineer issued the work orders. After execution of the contract, the work order was issued and 10% was deposited as performance security.

P.W. 6 Md. Alamgir Hossain is the Office Assistant, Office of the Assistant Health Engineering, Chuadanga. He stated that he signed the seizure list. He proved his signature as exhibit-3/2. He also stated that in his presence the investigating officer seized the bill issue register. During cross-examination, he stated that from 01.01.2011 to till date he is discharging his duty in the said office. He denied the suggestion that there was a room of another officer Hasan Al Mahmud adjacent to the office of the accused. He admitted that the Said Hasan Al Mahmud was also present there and as per instruction of the officer of the Anti-Corruption Commission, he signed the seizure list.

P.W. 7 Md. Khairul Islam stated that on 11.08.2015 he filed an application to the office of the Anti-Corruption Commission(exhibit-5). He proved his signature on the application dated 11.08.2015 as exhibit 5/1. He proved his signature on the inventory dated 12.08.2015 (exhibit-1) as exhibit-1/2. He completed the work of 11 tenders and obtained the bills. He applied to the accused to get back performance security and at that time, he demanded Tk. 200,000. His partner Md. Emarat paid Tk. 100,000 to the accused and thereafter, he signed. Subsequently, he went to the office at Jessore and the office of the Jessore instructed him to bring the memo number. After that, he again went to the office of the accused for the memo number and at that time, he demanded Tk. 100,000.

He handed over Tk. 50,000 to the accused present in Court and after that, the accused signed the papers. Thereafter, he filed the complaint petition to the office of the Anti-Corruption Commission on 11.08.2015. The officer of the Anti Corruption Commission called him on 12.08.2015 over the telephone to go to the office of Chuadanga. Thereafter, he went to the office of the Jhinuk High School and an inventory was prepared there. The Deputy Director, Mr Abdul Gaffar, Anti-Corruption Commission signed the notes and thereafter, he went to the office of the Assistant Engineer. He along with the engineer went to the guest room and handed over 50 notes of Tk. 1000 to him. Thereafter, he came back. He identified the accused in court. During cross-examination, he stated that total bills of Tk. 43,50,850 were paid. The performance security was 10% of the total amount. He did not make any statement to the investigating officer on the 12th at about 11:00 to 1130. Mr. Gffar called him over the telephone. He admitted that Tk. 50,000 were mentioned on the inventory. Abdul Gaffer, Based, and Headmistress of the High School were present when he signed the inventory. Subsequently, he stated that many other people also were present there. He admitted that he along with his partner Amarat went to the said office at Chuadnga and both of them entered that room. He admitted that the total amount of performance security and the alleged amount of bribes are the same. He had given the money to Abdul Gaffar and after that Gaffar signed the same. During cross-examination, he denied the suggestion that since the accused is an honest and competent officer he did not give any allegation to his higher authority against him. The name of his farm is Mrs. Ashik Enterprise but at the time of occurrence, he had no construction farm. He admitted that the accused recommended to pay the performance security and he also obtained the same. He denied the suggestion that he deposed falsely in a false case.

P.W. 8 Ms Rebeka Sultana is the Headmistress of Jhinuk Secondary High School, Chuadanga. She proved her signature on the list of the inventory dated 12.08.2015 (exhibit-1). She proved her signature as exhibit-2/3 on the seizure list (exhibit-2). On that day at about 1.30 p.m. Abdul Gaffar, Deputy Director, Anti-Corruption Commission, Kushtia along with others came to her office and prepared inventory sitting in his office. Md. Khairul Alam handed over the notes mentioned in the inventory and subsequently, the Deputy Director handed over those notes to Khairul Alam. Thereafter, Khairul Alam along with those notes went to the office of the Directorate of Health Engineering and she along with others followed him. Md. Khairul Alam handed over those notes to the accused and thereafter the Deputy Director along with his officers recovered those notes from the accused. She admitted that there were 48 notes of Tk. 1000, not 50 notes of Tk. 1000. During cross-examination, she stated that on 08.01.1989, she joined as an Assistant Teacher of Jhinuk Secondary High School and on 01.01.1999 she was promoted to the post of Headmistress of the said School. She is the General Secretary of the District Committee of the Anti-Corruption Commission. The Deputy Director Abdul Gaffar is known to her and she along with him attended on different occasions. She affirmed that she was not a member of the trap team and Md. Khairul Islam is not known to her. As Headmistress of the school, she witnessed the occurrence for which she signed. She denied the suggestion that as per the instruction of Abdul Gaffar, she signed the inventory. She also denied the suggestion that since there was apprehension that the office of the Anti-Corruption would take action against her under the compelling circumstances she signed the inventory. She could not say who had written and prepared the inventory and seizer list. She denied the suggestion that the notes were not recovered from the possession of the accused. She also denied the suggestion that since she is the Secretary of the District

Committee of the Anti-Corruption Commission, she signed as per instruction of Deputy Director Abdul Gaffar.

P.W, 9 Md. Based Ali is the Assistant Inspector of the Anti-Corruption Commission, Faridpur. He stated that from 2011 to November 2021 he was discharging his duty as Deputy Assistant Inspector, Office of the Anti-Corruption Commission, Kushtia. On 12.08.2015 Deputy Director Abdul Gaffar informed him that his name was included as a member of the trap team. Thereafter, he as a member of the trap team along with Deputy Director Abdul Gaffar, head of the trap team and Julfikar along with the force went to the office of the Jhinuk Secondary School, Chuadanga and on that day at about 3.20 pm went to the office of the Health Engineering, Chuadanga. At about 3.30 pm he along with the head of the trap team and others entered into the guest room of the officers. At that time, the money was recovered from the right hand of the accused and prepared the seizure list. Subsequently, the Deputy Director Abdul Gaffar lodged the FIR. During cross-examination, he stated that there is no document to show that he is a member of the trap team. He stated that there was a guest room in the office of Health Engineering, Chuadanga. He denied the suggestion that on the date and time of the occurrence, he did not go to Chuadanga and he was not a member of the trap team.

P.W. 10 Md. Shahidul Islam Moral is the Assistant Director of the office of the Anti-Corruption Commission, Kustia. He stated that from September 2011 to May 2016 he was discharging his duty as Assistant Director of the Anti Corruption Commission, Kushtia. He was appointed as the investigating officer of the trap case. During the investigation, he perused the list of inventory, seizure list and FIR and seized the documents, prepared the sketch map and index, recorded the statement of the witnesses under section 161 of the Code of Criminal Procedure, 1898 and found prima facie truth of the allegation against the accused. He submitted the memo of

evidence to the commission to get approval for submitting the charge sheets against the accused. After getting approval from the office of the Anti-Corruption Commission submitted a charge sheet on 21.01.2016. On 18.01.2016 he obtained the letter of approval. He proved the letter of approval as exhibit 8. He proved the sketch map as exhibit 9 and his signature as exhibit-9/1. On 02.11.2015 at 8.30 pm and 3 pm and on 04.11.2015 at midnight total 3 seizure lists were prepared. He proved the seizure lists dated 02.1.2015 as exhibits 6 and 7. He also proved his signature as exhibits-6/3 and 7/3. He proved his signature as exhibit-3/3 in the seizure list dated 04.11.2015 (exhibit 3). He stated that the alamat mentioned in those seizure lists were produced before the court. The documents as regards 6 packages were produced before the court. He proved the documents as exhibit-II series. He proved the register seized on 04.11.2015 as material exhibit-III series. During cross-examination, he admitted that the guest room was not mentioned in the sketch map. The sketch map was prepared on the first floor. Nothing is mentioned in the FIR as regards the specific place of occurrence. In the seizure list, total 48 notes were mentioned. He also admitted that 10% of the total amount is the performance guarantee. In the FIR it has been mentioned that Tk. 220,000 was demanded as a bribe. Rebeka Sultana is the General Secretary of the District Committee of the Anti-Corruption Commission, Kushtia. She admitted that the accused made the recommendation for payment of the performance security and no application was filed by Khairul Islam for getting back the performance guarantee and the application was filed to the Executive Engineer, Jessore. He admitted that the neighbouring persons of the place of occurrence are not witnesses of the case.

P.W. 11 Md. Zulfikar is the Assistant Inspector of the Anti-Corruption Commission, Dhaka. He stated that from September 2014 to March 2017 he was discharging his duty as A.S.I of the office of the Anti Corruption Commission, Kushtia. On 12.08.2015.

under the leadership of the Deputy Director, Abdul Gaffar, he, Md. Shahidur Rahman and Md. Based Ali went to the office of the Jhinuk Secondary High School, Chuadanga from 1 pm to about 1.30 pm and an inventory was made regarding the 50 notes of Tk. 1000 supplied by one Md. Khairul Islam. The Deputy Director Abdul Gaffar signed those notes and after making an inventory of 50 notes of Tk. 1000 were handed over to Khairul Islam. Thereafter, at 2.20 pm he along with Khairul Islam started and all the members of the trap team followed Md. Khairul Islam. At about 2.50 pm Md. Khairul Islam went to the office of the Directorate of Health Engineering, Chuadanga. He along with others remained on guard outside the office and after handing over the said notes, Khairul Islam instructed Deputy Director Abdul Gaffar to enter the room and thereafter as per instruction, all the members of the trap team, witnesses Hossain Ali and Rebeka Sultana entered into the guest room. At that time, the accused admitted that he received bribe and thereafter the money was recovered from his right hand. They found that the same numbers of recovered notes were mentioned in the list of inventory and found 48 notes of Tk. 1000 in the presence of the witnesses. The Deputy Director Abdul Gaffar prepared the seizure list and lodged the FIR. During cross-examination, he stated that Khairul Islam was not previously known to him. He came to know about the trap case on 12.08.2015. He denied the suggestion that the notes mentioned in the inventory were handed over sitting in the office of the Anti Corruption, Kushtia. He denied the suggestion that he did not find the inventory and the seizure list. He also denied the suggestion that he did not go to the Jhinuk Secondary High School. He denied the suggestion that Khairul Islam and Gaffar did not sign the inventory in his presence. He affirmed that the office room was situated on the ground floor and the guest room was situated on the first floor. He admitted that his name was not included in the trap case by any written order. Based on the oral instruction of the Deputy Director of the Anti-Corruption Commission, he went along

with them. He denied the suggestion that the accused was falsely implicated in the case.

Learned Advocate Mr. Md. Sarwar Ahmed appearing along with learned Advocate Mr. Mohammad Rezaul Kabir Khan on behalf of the appellant submits that there is a contradiction in the evidence of P.Ws. 1, 2, 8, 9 and 11 regarding the alleged recovery of 48 notes of Tk. 1000 from the possession of the appellant. The learned Advocate having placed the evidence of P.Ws. 2 and 8 submits that they were not present at the time of the alleged recovery of 48 notes from the possession of the appellant whereas P.Ws. 1, 9 and 11 stated that they along with P.Ws. 2 and 8 recovered the 48 notes of Tk.1000 from the possession of the appellant. Furthermore, the prosecution witnesses stated that the appellant issued the memo and P.W. 7 obtained the security deposit of the 11 tenders. Therefore, no question of demanding bribe has arisen and there was no occasion for P.W. 7 to bribe the appellant. He also submits that Emarat Hossain and the officers and the staff of the Directorate of Health Engineering were not cited as witnesses in the case. Therefore, the alleged recovery of 48 notes of Tk. 1000 from the possession of the appellant is doubtful and the prosecution failed to prove the charge levelled against him to the hilt beyond all reasonable doubt. Therefore, he prayed for setting aside the impugned judgment and order passed by the trial court.

Learned Advocate Mr. Md. Sazzad Hossain appearing on behalf of respondent No. 2 (ACC) submits that based on the allegation made by P.W. 7 Md. Khairul Islam (exhibit-5) with prior approval of the Anti-Corruption Commission, 4 members Committee was formed headed by P.W.1 and on the date of occurrence along with the members of the trap team went to the office of the Jhinuk High School, Chuadanga and in the presence of the P.Ws. 2 and 8, the members of the trap team prepared the list of inventory of 50 notes of Tk. 1000 supplied by P.W. 7 and after

preparing the list of inventory handed over those notes to the P.W. 7 to bribe to the appellant. Accordingly, P.W. 7 went to the office of the appellant at the time of occurrence and handed over those notes to him as a bribe to issue the memo for getting the security deposit of 11 tenders. He further submits that following P.W. 7, P.Ws. 1, 2, 8, 9 and 11 and others went to the office of the appellant and recovered 48 notes of Tk. 1000 from possession of the appellant in the presence of the witnesses. During the trial, P.Ws. 1, 2, 8, 9 and 11 proved the inventory and the recovered 48 notes of Tk. 1000 from the possession of the appellant. The prosecution proved the charge to the hilt against the appellant beyond all reasonable doubt. Therefore, he prayed for the dismissal of the appeal.

I have considered the submission of the learned Advocate for the appellant and the learned Advocate engaged on behalf of the respondent No. 2, perused the evidence, impugned judgment and order passed by the trial Court and the records.

On perusal of the records, it appears that the P.W. 7 Md. Khairul Islam filed an application on 11.08.2015 (exhibit-5) to the office of the Anti-Corruption Commission, Chuadanga as regards the demanding bribe by the accused. After receiving the application dated 11.08.2015(exhibit-5) with prior approval of the Anti-Corruption Commission (exhibit-8), 4 members trap team was formed headed by P.W. 1. After that, P.Ws. 1, 9, 11 and another member of the trap team went to the office of the Jhinuk High School, Chuadanga and in presence of P.W. 8 Rebeka Sultana, Headmistress of the said school and P.W. 2 Hossain Ali prepared the list of inventory of 50 notes of Tk. 1000 supplied by P.W. 7. During the trial, the prosecution proved the inventory as exhibit-1. After preparing the list of inventory, said notes were handed over to P.W. 7 Md. Khairul Islam and he went to the guest room of the office of the Directorate of Health Engineering, Chuadanga and handed over those notes to the appellant in the guest room situated on the first

floor of the said office. Immediately after handing over those notes, P.Ws. 1, 9 and 11 entered the guest room and recovered 48 notes of Tk. 1000 from the possession of the accused and prepared the seizure list. P.Ws. 2 and 8 stated that they remained on guard on the ground floor and after recovery of the said notes, they signed the seizure list. P.W.s 1, 9, and 11 stated that they recovered 50 notes of Tk. 1000 from the possession of the accused but P.Ws. 2 and 8 stated that they remain on guard at the ground floor. P.W. 8 stated that at the time of recovery of 48 notes of Tk. 1000, she was present adjacent to the place of recovery. P.W. 2 stated that Deputy Director Abdur Guffer recovered the said notes from the possession of the accused.

P.Ws. 1, 2, 8, 9 and 11 stated that in their presence, the inventory of 50 notes of Tk. 1000 was made and the said notes were handed over to P.W. 7 to bribe the accused. P.W.7 stated that he handed over 50 notes of Tk. 1000 to the accused as a bribe. Subsequently, 48 notes of Tk. 1000 mentioned in the list of inventory were recovered from possession of accused. P.Ws. 1, 2, 8, 9 and 11 also corroborated the evidence of P.W. 7 as regards the recovery of said notes from possession of the accused. I do not find any contradiction in the evidence of P.Ws. 1, 2, 8, 9 and 11 in respect of the recovery of 48 notes from possession of the accused. Therefore, I am of the view that the prosecution proved the charge against the accused beyond all reasonable doubt.

As regards the sentence passed by the trial court, I am of the view that considering the gravity of the offence, the ends of justice would be best served if the sentence passed by the trial court is modified as under;

The appellant is found guilty of the offence under section 161 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 and he is sentenced to suffer imprisonment

for 06(six) months under section 161 of the Penal Code, 1860 and to pay a fine of Tk. 48,000(forty-eight thousand), in default, to suffer imprisonment for 01(one) month.

In the result, the appeal is disposed of with modification of the sentence.

Send down the lower Court's record at once.

(Md. Shohrowardi, J)